



House of Representatives

General Assembly

File No. 233

February Session, 2026

Substitute House Bill No. 5128

House of Representatives, March 30, 2026

The Committee on General Law reported through REP. LEMAR of the 96th Dist., Chairperson of the Committee on the part of the House, that the substitute bill ought to pass.

AN ACT CONCERNING DIRECT-TO-CONSUMER GENETIC TESTING.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. (NEW) (*Effective October 1, 2026*) As used in this section and
2 sections 2 and 3 of this act:

3 (1) "Biological sample" (A) means any material that is derived from
4 the human body and known to contain DNA, and (B) includes, but is
5 not limited to, any human tissue, blood, urine or saliva;

6 (2) "Consumer" means any individual who is physically present in
7 this state and a recipient, or a prospective recipient, of genetic testing;

8 (3) "De-identified data" means any data that cannot reasonably be
9 used to infer information about, or otherwise be linked to, an identified
10 or identifiable individual if the direct-to-consumer genetic testing
11 company that possesses such data (A) takes administrative and
12 technical measures to ensure that such data cannot be associated with
13 an individual, (B) publicly commits to possess and use such data

14 exclusively in de-identified form and not to attempt to reidentify such
15 data, and (C) contractually obligates any recipient of such data to satisfy
16 the criteria set forth in subparagraphs (A) and (B) of this subdivision;

17 (4) "Direct-to-consumer genetic testing company" or "company" (A)
18 means any person doing business in this state who, in the ordinary
19 course of such business, (i) offers genetic testing directly to a consumer,
20 or (ii) collects, uses or analyzes genetic data that a consumer has
21 provided to such person, and (B) does not include any individual who
22 (i) is licensed by this state to provide health care services, and (ii) while
23 acting within the scope of such individual's practice, orders genetic
24 testing for a medical purpose;

25 (5) "DNA" means deoxyribonucleic acid;

26 (6) "Express consent" means an affirmative response by a consumer
27 to a clear, meaningful and prominent notice regarding the collection,
28 use, retention or disclosure of the consumer's genetic data for a specific
29 purpose;

30 (7) "Genetic data" (A) means any data, regardless of format,
31 concerning an individual's genetic characteristics, (B) includes, but is
32 not limited to, (i) any raw sequence data that result from sequencing all,
33 or any portion of, an individual's DNA, (ii) any genotypic or phenotypic
34 information that is obtained by analyzing an individual's raw sequence
35 data, and (iii) any information that (I) concerns a condition affecting an
36 individual's health, (II) the individual reports to a direct-to-consumer
37 genetic testing company, and (III) the direct-to-consumer genetic testing
38 company analyzes in connection with the individual's raw sequence
39 data and uses for scientific research or product development, and (C)
40 does not include de-identified data;

41 (8) "Genetic testing" means (A) any laboratory test performed on an
42 individual's complete DNA sequence, or one or more of an individual's
43 DNA regions, chromosomes, genes or gene products, for purposes of
44 determining the presence or absence of any genetic characteristic, and
45 (B) any interpretation of an individual's genetic data; and

46 (9) "Person" means any individual, association, corporation, limited
47 liability company, partnership, trust or other legal entity.

48 Sec. 2. (NEW) (*Effective October 1, 2026*) A consumer shall have a
49 property right in, and shall retain the right to exercise exclusive control
50 over, any biological sample that is derived from the consumer's body
51 and provided to, or used by, a direct-to-consumer genetic testing
52 company, as well as the results of any genetic testing conducted on the
53 consumer's DNA by a direct-to-consumer genetic testing company.
54 Such right to exercise exclusive control includes, but is not limited to,
55 the right to exercise exclusive control over the collection, use, retention,
56 maintenance, disclosure or destruction of such biological sample and
57 results.

58 Sec. 3. (NEW) (*Effective October 1, 2026*) (a) A direct-to-consumer
59 genetic testing company shall:

60 (1) At all times transact its business and conduct its affairs in a
61 manner that is consistent with a consumer's rights under section 2 of this
62 act;

63 (2) Prior to accepting any biological sample, genetic data or payment
64 from a consumer, disclose to the consumer the company's policies and
65 procedures concerning the collection, use and disclosure of genetic data;

66 (3) Display, in a prominent and publicly accessible location on the
67 company's Internet web site, a privacy notice disclosing such company's
68 policies and procedures concerning the collection, use, access,
69 disclosure, transfer, security, retention and deletion of a consumer's
70 data and the consumer's consent thereto;

71 (4) Prior to collecting, using or disclosing a consumer's genetic data,
72 obtain the consumer's express consent for such collection, use or
73 disclosure after disclosing to such consumer (A) the company's policies
74 and procedures concerning use of the genetic data such company
75 collects from consumers, (B) the identity of each person who may access
76 the results of genetic testing performed by the company, including, but

77 not limited to, any vendor or service provider for such company who
78 may access such results, and (C) the manner in which the company may
79 disclose such consumer's genetic data;

80 (5) In addition to the express consent required under subdivision (4)
81 of this subsection, separately obtain a consumer's express consent to (A)
82 disclose or transfer the consumer's genetic data to any person other than
83 a vendor or service provider for the company, prior to disclosing or
84 transferring such genetic data to such person, (B) use the consumer's
85 genetic data for any purpose other than the primary purpose for which
86 the company offered genetic testing directly to such consumer, prior to
87 using such genetic data for such other purpose, or (C) retain the
88 consumer's biological sample for any period following completion of
89 the genetic testing for which such consumer provided such biological
90 sample, prior to retaining such biological sample for such period;

91 (6) Obtain informed consent from a consumer in accordance with the
92 federal policy for the protection of human subjects under 45 CFR 46, as
93 amended from time to time, for any disclosure or transfer of the
94 consumer's genetic data to a third party for research purposes or
95 research conducted under the control of the company for purposes of
96 publication or generalizable knowledge;

97 (7) Not disclose the results of any genetic testing performed on a
98 consumer's DNA to any person other than the consumer, unless (A) the
99 company has obtained such consumer's express consent to such
100 disclosure, or (B) such disclosure is made to a person acting pursuant to
101 a court order, warrant or subpoena;

102 (8) Not disclose a consumer's genetic data to (A) the consumer's
103 employer, (B) any person who, in the ordinary course of business, (i)
104 offers health insurance, life insurance or long-term care insurance
105 coverage in this state or any other state, or (ii) provides information or
106 data to any insurer, as defined in section 38a-1 of the general statutes,
107 health care center, as defined in section 38a-175 of the general statutes,
108 or fraternal benefit society, as described in section 38a-595 of the general
109 statutes, for purposes of underwriting or rating of risks, or (C) any third

110 party which the company knows, or reasonably should know, intends
111 to use such genetic data for purposes of marketing, including, but not
112 limited to, targeted advertising;

113 (9) Implement reasonable security measures to protect a consumer's
114 biological sample or genetic data from any unauthorized access,
115 destruction, use, modification or disclosure; and

116 (10) Implement a process for a consumer to (A) access the consumer's
117 genetic data from the company, (B) require the company to delete the
118 consumer's genetic data, (C) require the company to destroy, and
119 confirm that such company has destroyed, the consumer's biological
120 sample, and (D) revoke the consumer's consent for (i) the company to
121 use such consumer's genetic data for research purposes, or (ii) any third
122 party to which the company has provided such consumer's genetic data
123 to use such genetic data for research purposes.

124 (b) Any violation of subsection (a) of this section shall be deemed an
125 unfair or deceptive trade practice under subsection (a) of section 42-110b
126 of the general statutes.

This act shall take effect as follows and shall amend the following sections:		
Section 1	October 1, 2026	New section
Sec. 2	October 1, 2026	New section
Sec. 3	October 1, 2026	New section

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GL *Joint Favorable Subst.*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact: None

Municipal Impact: None

Explanation

The bill makes various changes to direct-to-consumer genetic testing laws and makes violations an unfair trade practice resulting in no fiscal impact to the state. The Department of Consumer Protection (DCP) enforces unfair trade practice violations and has the expertise and resources to meet the requirements of the bill.

The Out Years

State Impact: None

Municipal Impact: None

OLR Bill Analysis**sHB 5128*****AN ACT CONCERNING DIRECT-TO-CONSUMER GENETIC TESTING.*****SUMMARY**

This bill gives consumers a property right and exclusive control over:

1. their biological samples (material from a person's body known to contain DNA including tissue, blood, urine, and saliva) that are given to or used by a direct-to-consumer genetic testing company and
2. results from genetic testing by these companies on their DNA.

This includes the right of control over the collection, use, retention, maintenance, disclosure, and destruction of a consumer's biological sample and results. The bill requires direct-to-consumer genetic testing companies to conduct their business and affairs consistent with these rights.

Additionally, the bill requires these companies to (1) disclose certain policies and procedures to consumers and (2) get a consumer's consent for various uses of their genetic data. The bill prohibits companies from disclosing the results of genetic testing on a consumer's DNA to anyone other than the consumer unless the consumer expressly consents to the disclosure, or it is disclosed to someone under a court order, warrant, or subpoena.

The bill also requires companies to have security procedures and certain processes to let consumers take certain actions.

Violations of the bill's provisions are deemed an unfair or deceptive trade practice under the Connecticut Unfair Trade Practices Act

(CUTPA) (see BACKGROUND).

EFFECTIVE DATE: October 1, 2026

SCOPE OF THE BILL

Direct-to-Consumer Genetic Testing Companies

The bill applies to “direct-to-consumer genetic testing companies,” which are individuals or entities that, in the ordinary course of business in Connecticut, offer genetic testing directly to a consumer or collect, use, or analyze genetic data given by a consumer. The term does not include a licensed health care services provider who, within the provider’s scope of practice, orders genetic testing for a medical purpose.

Genetic Testing

The bill defines “genetic testing” as (1) a lab test of a person’s complete DNA sequence or a DNA region, chromosome, gene, or gene product to determine the presence or absence of a genetic characteristic and (2) an interpretation of genetic data.

Genetic Data

The bill applies to “genetic data,” which is data in any format about an individual’s genetic characteristics. It includes:

1. raw sequence data that results from sequencing all or part of a person’s DNA;
2. genotypic (a person’s unique sequence of DNA) or phenotypic (a person’s observable characteristics) information from analyzing raw sequence data; and
3. information that (a) is about a person’s health condition, (b) the person gives the company, or (c) the company analyzes related to raw sequence data and uses for scientific research or product development.

It does not include de-identified data, which is data that cannot

reasonably be used to infer information about, or be linked to, an individual as long as the company that has the data (1) takes administrative and technical steps to make sure it cannot be associated with an individual, (2) publicly commits to have and use it only in de-identified form and does not reidentify it, and (3) contractually obligates any recipient of the data to do the same.

POLICY DISCLOSURES

The bill requires companies to:

1. disclose their policies and procedures on the collection, use, and disclosure of genetic data before taking a consumer's biological sample, genetic data, or payment; and
2. prominently display a privacy notice on their websites with their policies and procedures on the collection, use, access, disclosure, transfer, security, retention, and deletion of a consumer's data and consent.

CONSENT REQUIREMENTS

Collecting, Using, or Disclosing Genetic Data

The bill requires companies to get a consumer's express consent to collect, use, or disclose the consumer's genetic data. Before doing so, companies must disclose to the consumer:

1. their policies and procedures on using consumers' genetic data they collect;
2. each person who may access the results of genetic testing they perform, including vendors or service providers; and
3. how the company may disclose the consumer's genetic data.

Express consent under the bill requires the consumer to affirmatively respond to a clear, meaningful, and prominent notice about collecting, using, retaining, or disclosing the consumer's genetic data for a specific purpose.

Transferring Genetic Data, Using It for Other Purposes, and Retaining Samples

The bill requires a company to get a separate express consent before:

1. disclosing or transferring genetic data to anyone other than a vendor or service provider,
2. using the genetic data for any purpose other than the primary purpose the company gave to the consumer, or
3. retaining a consumer's biological sample after completing genetic testing.

Research Purposes

The bill requires a company to get the consumer's informed consent in compliance with federal regulations on human subjects to disclose or transfer genetic data to a third party for research purposes or research done under the company's control for publication or generalized knowledge.

PROHIBITED DISCLOSURES

The bill prohibits a company from disclosing a consumer's genetic data to:

1. the consumer's employer;
2. someone who in the ordinary course of business offers health, life, or long-term care insurance or provides information to an insurer, health care center, or fraternal benefit society for underwriting or rating risks; or
3. a third party the company knows or reasonably should know intends to use it for marketing, including targeted advertising.

SECURITY AND COMPANY PROCEDURES

The bill requires companies to have reasonable security measures to protect consumers' biological samples and genetic data from unauthorized access, destruction, use, modification, or disclosure. It

also requires companies to have procedures that allow consumers to:

1. access their genetic data;
2. require the company to delete their genetic data or destroy, and confirm destruction of, their biological samples; and
3. revoke consent for using their genetic data for research, including by a third party.

BACKGROUND

Connecticut Unfair Trade Practices Act (CUTPA)

By law, CUTPA prohibits businesses from engaging in unfair and deceptive acts or practices. It allows the Department of Consumer Protection commissioner, under specified procedures, to issue regulations defining an unfair trade practice, investigate complaints, issue cease and desist orders, order restitution in cases involving less than \$10,000, impose civil penalties of up to \$5,000, enter into consent agreements, ask the attorney general to seek injunctive relief, and accept voluntary statements of compliance. It also allows individuals to sue. Courts may issue restraining orders; award actual and punitive damages, costs, and reasonable attorney's fees; and impose civil penalties of up to \$5,000 for willful violations and up to \$25,000 for a restraining order violation.

COMMITTEE ACTION

General Law Committee

Joint Favorable Substitute

Yea 20 Nay 0 (03/11/2026)